

DATA PROCESSING AGREEMENT

1. Definitions

1.1 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

1.2 This Agreement may be executed in counterparts, each of which shall constitute an original. No failure or delay in exercising any right shall operate as a waiver of that right.

1.3 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

2. Scope of Processing

2.0 The Processor shall process Personal Data only on the documented instructions of the Controller, including with regard to transfers of Personal Data to a third country.

2.1 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

2.2 If any provision is found invalid, the remaining provisions shall continue in full force and effect. The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed.

2.3 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

3. Personnel

3.0 The Processor shall ensure that all persons authorised to process the Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

3.1 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

3.2 Each party shall bear its own costs in connection with the negotiation and execution of this Agreement. Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form.

3.3 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

4. Security

4.0 The Processor shall implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, including encryption of Personal Data at rest and in transit.

4.1 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

4.2 This Agreement may be executed in counterparts, each of which shall constitute an original. No failure or delay in exercising any right shall operate as a waiver of that right.

4.3 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

5. Sub-processing

5.0 The Processor shall not engage another processor without the prior specific or general written authorisation of the Controller.

5.1 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

5.2 If any provision is found invalid, the remaining provisions shall continue in full force and effect. The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed.

5.3 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

6. Personal Data Breaches

6.0 The Processor shall notify the Controller without undue delay, and in any event within forty-eight (48) hours, after becoming aware of a Personal Data Breach.

6.1 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

6.2 Each party shall bear its own costs in connection with the negotiation and execution of this Agreement. Notices under this Agreement shall be in writing and delivered to the addresses set out in

the Order Form.

6.3 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

7. Fees

7.0 The Controller shall pay the Processor an annual fee of £18,000, invoiced quarterly in advance.

7.1 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

7.2 This Agreement may be executed in counterparts, each of which shall constitute an original. No failure or delay in exercising any right shall operate as a waiver of that right.

7.3 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

8. Liability

8.1 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.

8.2 If any provision is found invalid, the remaining provisions shall continue in full force and effect. The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed.

8.3 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

9. Term

9.0 This Agreement shall remain in force for so long as the Processor processes Personal Data on behalf of the Controller.

9.1 The parties shall cooperate in good faith in the performance of this Agreement and shall keep each other reasonably informed. Each party shall bear its own costs in connection with the negotiation and execution of this Agreement.

9.2 Each party shall bear its own costs in connection with the negotiation and execution of this Agreement. Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form.

9.3 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

10. General

10.1 Notices under this Agreement shall be in writing and delivered to the addresses set out in the Order Form. This Agreement may be executed in counterparts, each of which shall constitute an original.

10.2 This Agreement may be executed in counterparts, each of which shall constitute an original. No failure or delay in exercising any right shall operate as a waiver of that right.

10.3 No failure or delay in exercising any right shall operate as a waiver of that right. If any provision is found invalid, the remaining provisions shall continue in full force and effect.